

25STCV15541 25STCV15541

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Case Number: 25STCV15541 Hearing Date: September 15, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MARJAN SVETKO, et al.,

Plaintiffs,

vs.

BARRINGTON PACIFIC, LLC,

Defendant.

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CASE NO.: 25STCV15541

[TENTATIVE] ORDER GRANTING PLAINTIFFS' MOTION
TO COMPEL DEPOSITION OF DEFENDANT'S PMK

Dept. 506

8:30 a.m.

September 15, 2026

On May 23, 2025, Plaintiffs filed
this action against Defendant Barrington Pacific LLC.

On
July 14, 2026, Plaintiffs served a Notice of Deposition of Defendant's Persons Most
Knowledgeable ("PMK"), noticing a deposition on August 11, 2026.

On
August 3, 2026, Defendant served objections to the date, to each topic, and to each
request for production of documents. Defendant
did not designate a PMK and did not appear for deposition. (Belisle Decl. ¶ 7.)

On
August 12, 2026, Plaintiffs filed this motion to compel the PMK deposition.

If
a party or an officer, director, managing agent, employee of a party, or person
designated as the person most qualified to testify fails to appear for examination
or produce documents without having served a valid objection under Section 2025.410,

the demanding party may move to compel attendance, testimony, and production. (Code Civ. Proc., § 2025.450, subd. (a).) Section 2025.410 provides for written objections to a deposition notice “that does not comply with Article 2 (commencing with Section 2025.210).” (Code Civ. Proc., § 2025.410., subd. (a).) Valid objections relate to timing of the service of the deposition notice, form and contents of the notice, location of the deposition, and length of the deposition. (Code Civ. Proc., §§ 2025.210, 2025.220, 2025.230, 2025.240, 2025.250, 2025.260, 2025.290.)

Defendant

objected to the deposition topics and document categories. These are not valid objections under Section 2025.410. Defendant could have, but did not, move for a protective order directing that the deposition not be taken or that aspects of the deposition be limited. (Code Civ. Proc., § 2025.420.)

Defendant

also objected because “[t]he date is not convenient to counsel or the deponent.” The Court is guessing that Defendant’s counsel

subscribes to the common belief that depositions cannot be noticed until after a date is agreed on by the parties and that to do otherwise is to improperly “unilaterally” set the deposition. It is not improper to unilaterally pick a date. Again, Defendant’s other option was to move for a protective order directing that the deposition be taken at a different time, but it did not.

(See Code Civ. Proc., § 2025.420, subd. (b)(2).)

Defendant’s

counsel contends that “new counsel would be substituting in and that all discovery and depositions will be handled by him.”

(Jeffrey Decl. ¶ 6.) Counsel believes

that new counsel has offered a new date for the deposition, “making this motion moot.” (Jeffrey Decl. ¶ 6.) No substitution of counsel or deposition has occurred. Nothing is moot.

Accordingly,

the motion is GRANTED. Defendant is ordered to produce its PMK for a deposition within 30 days.

The

request for sanctions is granted in part.

Defendant and its counsel, jointly and severally, are ordered to pay total

sanctions of \$1,000.00 to Plaintiffs within 30 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 15th day of September 2026

Hon. Thomas D. Long

Judge of the Superior

Court